

BC521491 BC521491

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Division: Civil Law and Motion

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Zimny v. Bahk et al.,

RULING

Cross-Defendant Henry M. Lee's Ex Parte Application for Temporary Stay of Collection is DENIED.

ANALYSIS

California Rules of Court, rule 3.1202(c), requires a moving party to make an affirmative factual showing of irreparable harm, immediate danger, or another statutory basis for ex parte relief. The moving party must also show that the asserted emergency was not created by the party's own conduct or lack of diligence.

Here, Lee concedes he took no action with respect to the judgment after it was entered in 2018. The asserted urgency to stay enforcement arises only because the Judgment Creditor has now initiated collection efforts. Any exigency is therefore of Lee's own making and does not support ex parte relief.

Further, Lee's supplemental brief effectively concedes there is no statutory basis for the stay he seeks. Instead, he asks the Court to exercise its inherent authority under Code of Civil Procedure section 128 to grant an equitable stay. But the application is unsupported by admissible, competent, and relevant evidence establishing harm.

In any event, even if Lee had submitted admissible evidence, the Court lacks authority to grant the requested relief in light of controlling law. A money judgment is enforceable upon entry. (Code Civ. Proc., § 683.010.) Code of Civil Procedure section 918(b) provides that where an undertaking would be required before an judgment could be appealed "a trial court shall not have power, without the consent of the adverse party," to stay enforcement beyond 10 days after the last date to file a notice of appeal, and section 918(c) makes clear that this limitation applies "whether or not an appeal will be taken." (Code Civ. Proc., § 918(b), (c).) Lee does not address this statute, or why this judgment would not require the giving of an undertaking before the Court could issue any stay.

Accordingly, the ex parte application is DENIED.

Moving party to give notice.